

Amendment No. 1 to SB1079

Bailey
Signature of Sponsor

AMEND Senate Bill No. 1079

House Bill No. 871*

by inserting the following new subsection at the end of SECTION 1:

(c) A third-party lender has no liability with respect to the use or return of deposits described in subsection (b) or determining whether an appropriate form of security was obtained for the use of the deposited funds unless the third-party lender takes ownership or control of the condominium project through foreclosure or other remedy, and only then to the extent of any deposits not already disbursed and expended.